

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Elizabeth Perry	Team: Team # 7	CCRB Case #: 200700229	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/06/2007 7:06 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/6/2008	Precinct: 62		
Date/Time CV Reported Sat, 01/06/2007 9:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 01/06/2007 9:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT
2. POM Pavel Mashkov	10242	931809	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eduard Nogol	Abuse: PO Eduard Nogol entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Pavel Mashkov	Abuse: PO Pavel Mashkov entered and searched § 87(2)(b) in Brooklyn.	B . Exonerated

Synopsis

On January 6, 2007 at 9:02pm, § 87(2)(b) called the CCRB's call processing system to report the following incident, which had just taken place:

On January 6, 2007 at approximately 6:56pm, § 87(2)(b) was engaged in a loud verbal and physical altercation with an individual at his apartment, which is located at § 87(2)(b) in Brooklyn. At approximately 7:06pm, Officers Eduard Nogol and Pavel Mashkov responded to this location due to the multiple 911 calls from § 87(2)(b)'s neighbors, regarding this altercation. When the officers arrived at § 87(2)(b)'s apartment, they asked him details about the altercation that had just taken place, but § 87(2)(b) refused to give the officers any information. The officers then explained that because multiple complaints were made and he would not give them any information, they needed to enter his apartment and investigate. § 87(2)(b) became angry and told the officers that they did not have the documentation to enter his apartment without infringing on his constitutional rights. PO Nogol then stated, "You haven't read your Constitution lately, buddy" and entered § 87(2)(b)'s apartment (Allegation A); PO Mashkov entered just behind PO Nogol (Allegation B). The officers then looked into the kitchen, bedroom, and living room while § 87(2)(b) continued to protest about his rights being violated. After the brief search around the apartment, the officers again tried to explain why they had the authority to come inside, given the nature of the complaints. The officers then exited § 87(2)(b)'s apartment.

During the above incident, § 87(2)(b)'s friends § 87(2)(b) and § 87(2)(b) (last name unknown) were sitting on the living room floor, watching TV; they had minimal, if any, verbal interaction with the officers.

§ 87(2)(g) it is recommended that allegations A and B be exonerated. § 87(2)(g)

Summary of Complaint

Investigator Elizabeth Perry interviewed § 87(2)(b) (enc. 6A-C) and § 87(2)(b) (enc. 7A-C) at the CCRB on January 19, 2007. § 87(2)(g)

On January 6, 2007 at approximately 7:30pm, § 87(2)(b) was at his apartment, which is located at § 87(2)(b) in Brooklyn. § 87(2)(b) had three people over his apartment whose names he refused to disclose. Around this time, § 87(2)(b) became engaged in a loud, physical and verbal altercation with one of these individuals, but he refused to provide details about this altercation to the investigator. However, § 87(2)(b) informed the investigator that § 87(2)(b) had been a physical altercation with his brother-in-law and that § 87(2)(b)'s brother-in-law "busted" a window with § 87(2)(b)'s head during this fight. Shortly after this altercation, these individuals left § 87(2)(b)'s apartment and § 87(2)(b) and § 87(2)(b) (last name unknown) arrived.

After § 87(2)(b) and § 87(2)(b) arrived, § 87(2)(b) heard a knock on his door and opened it to see PO Nogol (identified by his badge number) and PO Mashkov (identified as being PO Nogol's partner at the time of the incident). The officers explained to § 87(2)(b) that a complaint had been made about an altercation in his apartment. They asked § 87(2)(b) details about the incident, but he refused to give the officers any information. The officers then explained to § 87(2)(b) that since a complaint was made, they needed to come inside his apartment and investigate it. § 87(2)(b) told the officers that they didn't have any right to come into his apartment because they didn't have a search warrant or court papers allowing them to do so. § 87(2)(b) continued to protest to the officers about his constitutional rights of privacy as they entered his apartment and told him, "You haven't read your Constitution lately, buddy." After the

officers were inside, § 87(2)(b) told the officers that he had in fact, read the Constitution lately and continued to preach about his rights. As this conversation continued to go back and forth, the officers began looking through the apartment. They looked in the kitchen first, then the bedroom, then the living room. The officers did not open any drawers or anything to that nature; they only looked inside the rooms. § 87(2)(b) and § 87(2)(b) were sitting in the living room throughout the incident and did not have any significant interaction with the officers. After looking through the apartment, the officers again attempted to explain why they had the authority to search due to the nature of the complaint and then left § 87(2)(b)'s apartment.

Results of Investigation

Witnesses Not Interviewed

Neither § 87(2)(b) nor § 87(2)(b) could provide a last name or any contact information for § 87(2)(b). In addition, § 87(2)(b) was not interviewed for this case because the statements from § 87(2)(b) and § 87(2)(b) were sufficient and obtaining a statement from § 87(2)(b) would not have had any influence on the outcome of the allegations.

Officer Identification

PO Eduard Nogol was initially identified because § 87(2)(b) was able to obtain his shield number at some point during the incident. The SPRINT printout associated with this incident identifies sector G as the responding sector. After comparing the SPRINT with the 62nd Precinct roll call, it was found that PO Nogol and PO Mashkov were the officers who responded to § 87(2)(b)'s apartment. Accordingly, PO Nogol's memo book has entries in it regarding this incident and PO Mashkov's memo book confirms that he was assigned to sector G and that his partner was PO Nogol on January 6, 2007.

Police Officers Not Interviewed

§ 87(2)(g)

Officer Statements

PO Eduard Nogol has the following entry in his memo book regarding this incident (enc. 8A-D): "2031- 10-90Y uncooperative C/v. had conversation with owner in apt § 87(2)(b) stated heard loud argument; also said he heard a male say, "You choked me first." Also said two males argue a lot @ apt § 87(2)(b) male, mid 30's, long hair unkempt, 5'5" 160 lbs w/m was asked by A/O "Did you have an argument?" and his response was, "I'm not sure." (illegible word) For possible man down inspection of apt n/v/o. Other party had fled location. No inj (uries) to m/w, refused police help. Several residents on 2nd floor heard fight but did not see anyone leave apt or enter apt."

Police Documents Relevant to Incident

The SPRINT printout shows that there were at least four separate 911 calls from § 87(2)(b)'s neighbors regarding a dispute and/or disturbance: The first 911 call came in at 18:57 from a neighbor who stated, "Fighting and windows are breaking; unknown weapons; unknown injuries; screaming and yelling." The second 911 call came at 18:58 from a female neighbor. The third call came at 18:59 from a male neighbor, and the fourth call came in at 20:20 from a male neighbor stating that he heard noise but did not want to be involved. The SPRINT printout also shows that sector G from the 62nd Precinct responded to the location (enc. 10 A-C).

The 62nd Precinct tour 3 Roll Call from January 6, 2007 shows that PO Nogol and PO Mashkov were partners assigned to sector G (enc. 11A-G).

Criminal History of § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB History of § 87(2)(b)

This is § 87(2)(b)'s first CCRB complaint (enc. 4).

CCRB History of PO Nogol and PO Mashkov

Neither PO Nogol nor PO Mashkov have any previously substantiated CCRB allegations (enc. 2 & 3, respectively).

Conclusions and Recommendations

Undisputed & Disputed Facts

It is not in dispute that there were multiple 911 calls regarding a disturbance inside § 87(2)(b)'s apartment. It is also not in dispute that PO Nogol and PO Mashkov responded to these calls and then proceeded to enter and briefly search § 87(2)(b)'s apartment. There are no disputed facts in this case.

Credibility Analysis

§ 87(2)(g)

Allegation A: PO Eduard Nogol entered and searched § 87(2)(b), in Brooklyn.

Allegation B: PO Pavel Mashkov entered and searched § 87(2)(b), in Brooklyn.

Kamins' New York Search and Seizure discusses the law regarding the *emergency doctrine* as an exigent circumstance for a warrantless entry (enc. 1 A-B), "Under this doctrine, a police officer can enter a premises without a warrant to protect individuals in distress, to assist victims of crimes that have just occurred, or investigate suspicious signs of impending danger. Courts have approved warrantless searches (when there is) a report of a domestic dispute ...to determine whether one of the parties is safe; or a report of a screaming and serious verbal dispute." Additionally, the courts have held that there are three basic requirements, which would allow officers to make a warrantless entry: "1. the police must have reasonable grounds to believe that there is an emergency at hand and that there is an immediate need for their assistance for the protection of life or property; 2. the search must not primarily be motivated by an intent to arrest and seize evidence; and 3. there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or property to be searched."

§ 87(2)(g)

§ 87(2)(b). Statements from the callers include, "Fighting and windows are breaking," "Screaming and yelling," and "it is unknown if weapons are being used." These statements were corroborated by § 87(2)(b) who said that during this physical altercation between § 87(2)(b) and his brother-in-law, § 87(2)(b)'s head was busted through a window in his apartment. Furthermore, based upon § 87(2)(b)'s statement, he refused to provide the officers with any information about what had occurred. § 87(2)(g)

In light of the above, **it is recommended that allegations A and B be exonerated.**

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: